

mit the preacher and congregation for the time being to have the use and enjoyment of the chapel.

7. **Trust for the poor of a parish.**—The limitation of an estate to the *poor of a parish* would *at law*, be void (*e*), because the rules of pleading require the claimants to bring themselves under the gift, and no indefinite multitude, without public allowance, can take by a general name; but by way of trust they are capable of purchasing, for they assert no title in themselves, but only require the trustees to keep good faith (*f*).

8. **Trust of an advowson for the parishioners.**—Again, an *advowson* cannot at law be given to a parish which is not a corporate body, but it may be vested in trustees, upon *trust for the "*parishioners and inhabitants*," that is, [*86] the parishioners, being inhabitants (*a*) of a parish.

A trust of this kind is not considered a charity, but is administered on the footing of an ordinary trust, and application must be made to the Court, not by way of information, but by action (*b*). The case of an advowson held in trust for a parish has been called an anomalous one. A valid trust, for the benefit of a parish or the parishioners for ever, cannot be made, except on the ground that it is a charity; and the reasoning by which it is sought to bring it under this head is, that the parishioners who elect get no *personal* benefit, but it is a mode of selecting the charity trustee, for the incumbent who performs divine service and ministers to the spiritual wants of the parish is in a large sense a trustee for the parish (*c*).

9. **Who shall elect the clerk.**—From the infinite mischiefs arising from popular election (*d*), the Court, where the settlement does not expressly give the election to the parishioners,

(*e*) Co. Lit. 3, a.

(*f*) Gilb. on Uses, 44.

(*a*) *Fearon v. Webb*, 14 Ves. 24, per Chief Baron M'Donald; *ib.* 26, per Baron Graham; *Wainwright v. Bagshaw*, Rep. t. Hardwicke, by Ridg. 56, per Lord Hardwicke.

(*b*) *Attorney-General v. Forster*, 10 Ves. 344; *Attorney-General v. Newcombe*, 14 Ves. 1; *Fearon v. Webb*, *ib.* 19.

(*c*) *Attorney-General v. Webster*, 20 L. R. Eq. 483, see 491.

(*d*) See, in addition to the cases cited in the next note, the observations of Vice-Chancellor Knight Bruce, *Attorney-General v. Cuming*, 2 Y. & C. Ch. Ca. 158; and 19 & 20 Vict. c. 50, authorizing the sale of advowsons held upon trust for parishioners.